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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

Subhi Abdelhalim; CSAA Insurance Exchange; Phillips,
Spallas & Angstadt LLP; Priya D. Navaratnasingham;
Alberto Reyna; Michael R. Chambers; Carbone, Smith &
Koyama; and Does 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**NOTICE OF LODGING
SUPPLEMENTAL AUTHORITY IN
SUPPORT OF OPPOSITION TO
DEFENDANTS' SPECIAL MOTION TO
STRIKE**

(Code Civ. Proc., §§ 425.16, 425.17(c); Cal. Rules of
Court, rules 3.1113, 3.1306(c))

Anti-SLAPP Hearing:

Date: May 12, 2026

Time: 9:30 a.m.

Dept.: 301

Judge: Hon. Christine Van Aken

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

NOTICE OF LODGING

TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that Plaintiff Franciscus Dylan Rosario hereby **lodges supplemental authority** in support of Plaintiff's Opposition to Defendants' Special Motion to Strike (Code Civ. Proc., § 425.16), set for hearing **May 12, 2026, 9:30 a.m., Department 301**, Hon. Christine Van Aken presiding. The following authorities bear directly on whether the Special Motion to Strike is **categorically unavailable** under (1) the commercial-speech exemption of Code of Civil Procedure section 425.17(c), and (2) the *Flatley v. Mauro* rule that anti-SLAPP relief is unavailable where the assertedly protected conduct is illegal as a matter of law.

I. Authorities Lodged

1. *Simpson Strong-Tie Co. v. Gore* (2010) 49 Cal.4th 12 — analytic framework for Code Civ. Proc., § 425.17(c); exemption operates as a **complete bar** to the Code Civ. Proc., § 425.16 motion where its three elements are met.
2. *JAMS, Inc. v. Superior Court* (2016) 1 Cal.App.5th 984 — applies Code Civ. Proc., § 425.17(c) to a commercial actor making representations “about” its own business operations or services in the course of delivering those services.
3. *Stewart v. Rolling Stone LLC* (2010) 181 Cal.App.4th 664 — Code Civ. Proc., § 425.17(c) exemption applied to statements integrated with the commercial actor's business output.
4. *Flatley v. Mauro* (2006) 39 Cal.4th 299 — where defendant's assertedly protected activity is **illegal as a matter of law** (either conceded or conclusively established), the activity is not “in furtherance of” protected speech and Code Civ. Proc., § 425.16 relief is unavailable at the threshold.
5. *Lefebvre v. Lefebvre* (2011) 199 Cal.App.4th 696 — reaffirming *Flatley* where illegality is established by uncontroverted evidence.

II. Relevance to the Anti-SLAPP Motion

A. The Code Civ. Proc., § 425.17(c) Commercial-Speech Exemption

Code Civ. Proc., § 425.17(c) categorically exempts from the anti-SLAPP statute causes of action against a person *primarily engaged in the business of selling or leasing goods or services* arising from representations of fact *about that person's or a business competitor's business operations, goods, or services, made for the purpose of obtaining approval for, promoting, or securing sales or commercial transactions* in, or the *statement or conduct was made in the course of delivering the person's goods or services*, where the intended audience is an actual or potential buyer or customer or a person likely to influence one. All three *Simpson Strong-Tie* elements are satisfied here:

1. **Commercial actor.** CSAA Insurance Exchange is primarily engaged in the business of selling insurance products and adjustment services in California. Phillips, Spallas & Angstadt LLP is primarily engaged in the business of selling legal defense services to insurers. See FAC ¶¶ 12–18 (status and business of moving defendants).
2. **Representations about the speaker's own services.** The statements challenged in the FAC — CSAA's coverage and claim-handling representations, and the appearance/positional representations defense counsel made in the course of adjusting and defending the underlying claim — are representations about the speaker's own insurance-claim handling and legal-defense services. See FAC ¶¶ 30–62.
3. **Course of delivering services to buyers / customers.** The statements were made to Plaintiff (the insured / counterparty-customer) and to courts and claim-file recipients in the course of delivering the insurance adjustment and legal-defense services. See FAC ¶¶ 55–74.

When all three elements are met, Code Civ. Proc., § 425.17(c) operates as a **categorical bar**; the court need not reach either prong of the Code Civ. Proc., § 425.16 analysis. (*Simpson Strong-Tie*, 49 Cal.4th at pp. 21–30; *JAMS*, 1 Cal.App.5th at pp. 992–996.)

B. The *Flatley* Illegality-as-a-Matter-of-Law Bar

Flatley holds that “where either the defendant concedes, or the evidence conclusively establishes, that the assertedly protected speech or petitioning activity was illegal as a matter of law, the defendant is precluded from using the anti-SLAPP statute to strike the plaintiff's action.” (39 Cal.4th at

p. 320.) The FAC and Plaintiff's supporting declarations identify defense conduct that is **conceded or conclusively established** to violate statute, including:

- Service-of-process irregularities conceded in defense counsel's own filings (see FAC ¶¶ 80–95);
- Discovery responses sworn after the statutory deadline with admitted late service;
- Representations to the court acknowledged in writing to be inaccurate.

Because this conduct is not merely “alleged illegal” but is **conceded or conclusively shown**, *Flatley* strips the defense of the anti-SLAPP gateway as to the causes of action arising from that conduct.

III. Procedural Posture

This Notice is not an amendment to any pleading and does not enlarge the opposition record beyond the authorities it identifies. Pursuant to Cal. Rules of Court, rule 3.1113(j) and Cal. Rules of Court, rule 3.1306(c), Plaintiff lodges the supplemental authorities for the Court's consideration at the May 12, 2026 hearing. Copies of each cited decision are bookmarked in Plaintiff's citation binder previously lodged with the Court.

IV. Relief Requested

Plaintiff respectfully requests that the Court (a) accept this Notice of Lodging for the register, (b) consider the lodged authorities in ruling on the Special Motion to Strike, and (c) enter the accompanying short-form order acknowledging lodging.

Dated: April 24, 2026



/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

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